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LAURENCE E. JACOBSON, P.C.
Attorney for Plaintiff(s)
Office & P.O. Address
401 Broadway - Suite 810
New York, New York 10013
(212) 966-1435

Dated: September 24, 2014

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

TO THE ABOVE NAMED DEFENDANT(S):

-----X

Defendants.

Plaintiff residence:
12 Suydam Street
County of Kings

THE CITY OF NEW YORK & POLICE OFFICER
WILDOR SAINTVAL, Shield #27121,

S U M M O N S

-against-

Plaintiffs,

County as the place
of trial
Basis of Venue:
Location of Occurrence

FRANKLIN NUNEZ and ANGLO NUNEZ,

-----X

Plaintiff designates

KINGS

County as the place

of trial

Basis of Venue:

Location of Occurrence

COUNTY OF KINGS

SUPREME COURT OF THE STATE OF NEW YORK

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Purchased: _____

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X

FRANKLIN NUNEZ and ANGLO NUNEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK & POLICE OFFICER
WILDOR SAINTVAL, Shield #27121,

Defendants.

-----X

Plaintiffs, complaining of the defendants, by their attorney, LAURENCE E. JACOBSON,
P.C., respectfully set forth and allege as follows, upon information and belief:

AS TO ALL CAUSES OF ACTION

1. That at all times herein mentioned, defendant, THE CITY OF NEW YORK

(hereinafter referred to as CITY) was and still is a municipal corporation, duly organized and
existing under and by virtue of the laws of the State of New York.

2. That at all times herein mentioned, defendant, CITY, operated and maintained
a police department.

3. That at all times herein mentioned, the Police Department of the City of
New York was an agency of the defendant, CITY.

4. That on the 24th day of November, 2013, plaintiff, FRANKLIN NUNEZ, was
lawfully in premises 960 East 84th Street, County of Kings, City and State of New York.

5. That on the 24th day of November, 2013, plaintiff, ANGLO NUNEZ, was

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VERIFIED COMPLAINT

- lawfully in premises 960 East 84th Street, County of Kings, City and State of New York.
6. That on or about the 20th day of February, 2014 and within ninety days after the claim herein sued upon arose, plaintiff, FRANKLIN NUNEZ, caused a Notice of Claim to be served upon defendant, CITY, by delivering a copy thereof personally to the defendant, CITY, which Notice of Claim set forth the name and post office address of the claimant and his attorney, the nature of the claim, the time when and the place where, and the manner in which the claim arose and the items of damage of injuries claimed to have been sustained as far as then practicable.
7. That on or about the 20th day of February, 2014 and within ninety days after the claim herein sued upon arose, plaintiff, ANGELIO NUNEZ, caused a Notice of Claim to be served upon defendant, CITY, by delivering a copy thereof personally to the defendant, CITY, which Notice of Claim set forth the name and post office address of the claimant and his attorney, the nature of the claim, the time when and the place where, and the manner in which the claim arose and the items of damage of injuries claimed to have been sustained as far as then practicable.
8. That at all times herein mentioned, Police Office WILDOR SAINTVAL, Shield #27121, (hereinafter SAINTVAL) was a police officer employed by the New York City Police department and was assigned to the 69th Police Precinct.
9. That on the 24th day of November, 2013, all actions involving plaintiff, FRANKLIN NUNEZ, performed by defendant, SAINTVAL, were performed by the said police officer within the course and scope of his employment as a police officer employed by defendant, CITY.

10. That on the 24th day of November, 2013, all actions involving plaintiff, ANGELLO NUNEZ, performed by defendant SAINTVAL, were performed by the said police officer within the course and scope of his employment as a police officer employed by defendant, CITY.

11. That at least thirty days have elapsed since the Notice of Claim was served on behalf of FRANKLIN NUNEZ, and adjustment or payment thereof has been neglected or refused by the City of New York.

12. That at least thirty days have elapsed since the Notice of Claim was served on behalf of ANGELLO NUNEZ, and adjustment or payment thereof has been neglected or refused by the City of New York.

13. That this action was commenced within one year after the happening of the event upon which the claim is based.

14. That the plaintiffs have complied with all the conditions precedent to the institution of this action.

**FIRST CAUSE OF ACTION - WRONGFUL ARREST
AND WRONGFUL IMPRISONMENT - FRANKLIN NUNEZ**

15. That on the 24th day of November, 2013, in premises 960 East 64th Street, County of Kings, City and State of New York, plaintiff, FRANKLIN NUNEZ, was falsely and wrongfully arrested by defendant, SAINTVAL, Shield #27121 and then and there imprisoned.

16. That at the time of the wrongful arrest of the plaintiff, FRANKLIN NUNEZ was committing no crime or offense.

17. That aforesaid arrest of the plaintiff, FRANKLIN NUNEZ, on November 24,

2013 was without probable cause and without any arrest warrant.

18. That after his said arrest, plaintiff, FRANKLIN NUNEZ, was imprisoned against his will and transported to the 69th Police Precinct.

19. That thereafter plaintiff was transported to Kings County Central Booking and the Kings County Criminal Court.

20. That as a result of the wrongful actions of the aforesaid defendant, SAINTVAL,

Shield #27121, employed by the defendant, CITY, all of which actions were committed while in the course and scope of his employment as a police officer employed by the Police Department of the City of New York, the plaintiff, FRANKLIN NUNEZ, remained in the custody of the

New York City Police Department and/or the New York City Department of Corrections until his release on November 25, 2013.

21. That all of the aforesaid acts of the said defendant, SAINTVAL, Shield #27121,

were unlawful, against the will of the plaintiff and were committed by said police officer within the scope of his authority as police detective employed by the Police Department of the City of New York.

22. That solely by reason of the aforesaid, plaintiff, FRANKLIN NUNEZ, was

damaged in a substantial sum of money which exceeds the jurisdictional limitations of all lower courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION - VIOLATION OF PLAINTIFF
FRANKLIN NUNEZ'S CIVIL RIGHTS

23. Plaintiff, FRANKLIN NUNEZ, repeats, reiterates and realleges each and every

allegation contained herein numbered "15-21 " inclusive with the same force and effect as if

herein fully set forth at length.

24. That the aforementioned acts committed by aforesaid defendant, SAINTVAL, Shield #27121, constituted a violation of the plaintiff, FRANKLIN NUNEZ's rights secured by 42 U.S.C. 1983.

25. That solely by reason of the aforesaid, plaintiff, FRANKLIN NUNEZ, was damaged in a substantial sum of money which exceeds the jurisdictional limitations of all lower courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION - NEGLIGENCE HIRING

26. Plaintiff, FRANKLIN NUNEZ, repeats, reiterates and realleges each and every allegation contained herein numbered "15-21" inclusive with the same force and effect as if

herein fully set forth at length.

27. That the defendant, CITY, its agents, servants and/or employees were negligent and careless and violated proper Police Department procedures in arresting the said plaintiff, FRANKLIN NUNEZ, and in detaining him; in failing to properly hire, train and supervise their police officers; and in otherwise being reckless and negligent under the circumstances.

28. That solely by reason of the aforesaid, plaintiff, FRANKLIN NUNEZ, was damaged in a substantial sum of money which exceeds the jurisdictional limitations of all lower courts which would otherwise have jurisdiction.

FIRST CAUSE OF ACTION - WRONGFUL ARREST AND WRONGFUL IMPRISONMENT - ANGELLO NUNEZ

29. That on the 24th day of November, 2013, in premises 960 East 64th Street, County

of Kings. City and State of New York, plaintiff, ANGELO NUNEZ, was falsely and wrongfully arrested by defendant, SAINTVAL, Shield #27121 and then and there imprisoned. 30. That at the time of the wrongful arrest of the plaintiff, ANGELO NUNEZ was committing no crime or offense.

31. That aforesaid arrest of the plaintiff, ANGELO NUNEZ, on November 24, 2013 was without probable cause and without any arrest warrant.

32. That after his said arrest, plaintiff, ANGELO NUNEZ, was imprisoned against his will and transported to the 69th Police Precinct where he was imprisoned for approximately four hours prior to his release with a desk appearance ticket.

33. That as a result of the wrongful actions of the aforesaid defendant, SAINTVAL, Shield #27121, employed by the defendant, CITY, all of which actions were committed while in the course and scope of his employment as a police officer employed by the Police Department of the City of New York, the plaintiff, ANGEL NUNEZ, remained in the custody of the New York City Police Department for approximately four hours.

34. That all of the aforesaid acts of the said defendant, SAINTVAL, Shield #27121, were unlawful, against the will of the plaintiff and were committed by said police officer within the scope of his authority as police officer employed by the Police Department of the City of New York.

35. That solely by reason of the aforesaid, plaintiff, ANGELO NUNEZ, was damaged in a substantial sum of money which exceeds the jurisdictional limitations of all lower courts which would otherwise have jurisdiction.

**SECOND CAUSE OF ACTION - VIOLATION OF PLAINTIFF
ANGELO NUNEZ'S CIVIL RIGHTS**

36. Plaintiff, ANGELLO NUNEZ, repeats, reiterates and realleges each and every allegation contained herein numbered "29-34 " inclusive with the same force and effect as if herein fully set forth at length.

37. That the aforementioned acts committed by aforesaid defendant, SAINTVAL, Shield #27121, constituted a violation of the plaintiff, ANGELLO NUNEZ's rights secured by 42 U.S.C. 1983.

38. That solely by reason of the aforesaid, plaintiff, ANGELLO NUNEZ, was damaged in a substantial sum of money which exceeds the jurisdictional limitations of all lower courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION - NEGLIGENCE HIRING

39. Plaintiff, ANGELLO NUNEZ, repeats, reiterates and realleges each and every allegation contained herein numbered "28-34" inclusive with the same force and effect as if herein fully set forth at length.

40. That the defendant, CITY, its agents, servants and/or employees were negligent and careless and violated proper Police Department procedures in arresting the said plaintiff, ANGELLO NUNEZ, and in detaining her; in failing to properly hire, train and supervise their police officers; and in otherwise being reckless and negligent under the circumstances.

41. That solely by reason of the aforesaid, plaintiff, ANGELLO NUNEZ, was damaged in a substantial sum of money which exceeds the jurisdictional limitations of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiffs, FRANKLIN NUNEZ and ANGLO NUNEZ, demand judgment against the defendants in a substantial sum of money to be determined by the jury, together with interest, costs and disbursements.

LAURENCE E. JACOBSON, P.C.
Attorney for Plaintiff(s)
401 Broadway - Suite 810
New York, New York 10013

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
(ss.:)
COUNTY OF NEW YORK)

LAURENCE E. JACOBSON, an attorney at law duly admitted to practice in the State of New York and the attorney for the plaintiff(s) herein, does hereby affirm that the following statements are true under the penalties of perjury:

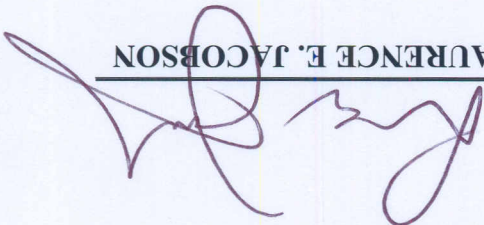
That he is the attorney for the plaintiff(s);

That he has read the attached Complaint and the same is true to his own belief, except as to those matters alleged upon information and belief, and as to those matter, he believes them to be true.

That affiant's sources of information is a file maintained in affiant's office containing information pertaining to the within case, with which affiant is fully familiar.

This verification is made by affiant because the plaintiff does not reside within the county where affiant maintains his office.

Dated: September 24, 2014


LAURENCE E. JACOBSON

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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

FRANKLIN NUNEZ and ANGLO NUNEZ,

Plaintiff(s),

-against-

THE CITY OF NEW YORK, et ano.,

Defendant(s).

VERIFIED COMPLAINT

LAURENCE E. JACOBSON, P.C.

Attorney at Law

401 Broadway - Suite 810

New York, New York 10013

(212) 966-1435

Pursuant to 22 NYCRR 130-1.1, the undersigned an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: _____

Signature

LAURENCE E. JACOBSON, P.C.

[] NOTICE OF ENTRY

Sir: Please take notice that the within is a (certified) true copy duly entered in the office of the Clerk of the within named Court on

[] NOTICE OF SETTLEMENT

Sir: Please take notice that the within is a true copy and will be presented for settlement to the Hon. _____
at _____
Dated: _____

Yours, etc.,

LAURENCE E. JACOBSON, P.C.
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New York, New York 10013
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